



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 6, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202003650 regarding Detective Robert Divers, Tax No. 957551 (DADS No. 2021-23882)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that it does not warrant the recommended penalty of a Schedule "A" Command Discipline. The CCRB investigation had concluded that there was insufficient evidence to determine whether permission was granted by the individual inside of the apartment to enter and search the premises. Although the CCRB investigator was unable to determine whether permission to enter and search was granted, a single allegation of improper search against Detective Divers was substantiated by the CCRB investigator based solely on the absence of a consent to search form rather than any determination regarding the actual consent.

The Police Commissioner agrees with the CCRB that it cannot be determined whether permission to enter or search was granted or not. However, the absence of a form, does not make a search per se improper, absent some other dispositive evidence. Therefore, Detective Divers will receive no disciplinary action for the alleged violation of Administrative Guide Procedure No. 304-06 (Prohibited Conduct/ Search).

However, the Police Commissioner, separate and apart from the CCRB allegation, recognizes that there was a deficiency in the proper documentation of the consent to search in this incident and, thus, directs that Detective Divers receive training from his Commanding Officer regarding proper documentation of a search by consent.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in dark ink, appearing to read 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office